to corporations on the ground that it violated the Equal Protection Clause.[3] Every one of our decisions upholding legislation as applied to corporations over the objection that it violated the Equal Protection Clause has assumed that they are entitled to the constitutional protection. But in those cases it was not necessary to meet the issue since the state law was not found to contain the elements of discrimination which the Equal Protection Clause condemns. But now that the question is squarely presented I can only conclude that the *Santa Clara* case was wrong and should be overruled.

One hesitates to overrule cases even in the constitutional field that are of an old vintage. But that has never been a deterrent heretofore[4] and should not be now.

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[3] See *Chicago, M. & St. P. R. Co.* v. *Minnesota,* 134 U. S. 418; *Gulf, Colorado & Santa Fé R. Co.* v. *Ellis,* 165 U. S. 150; *Cotting* v. *Kansas City Stockyards Co.,* 183 U. S. 79; *Connolly* v. *Union Sewer Pipe Co.,* 184 U. S. 540; *Southern R. Co.* v. *Greene,* 216 U. S. 400; *Herndon* v. *Chicago, Rock Island & Pac. R. Co.,* 218 U. S. 135; *Roach* v. *Atchison, T. & Santa Fe R. Co.,* 218 U. S. 159; *Atchison, T. & S. F. R. Co.* v. *Vosburg,* 238 U. S. 56; *Gast Realty Co.* v. *Schneider Granite Co.,* 240 U. S. 55; *McFarland* v. *American Sugar Co.,* 241 U. S. 79; *Royster Guano Co.* v. *Virginia,* 253 U. S. 412; *Bethlehem Motors Corp.* v. *Flynt,* 256 U. S. 421; *Kansas City So. R. Co.* v. *Road Imp. Dist. No. 6,* 256 U. S. 658; *C. & N. W. R. Co.* v. *Nye Co.,* 260 U. S. 35; *Sioux City Bridge Co.* v. *Dakota County,* 260 U. S. 441; *Thomas* v. *Kansas City So. R. Co.,* 261 U. S. 481; *Kentucky Co.* v. *Paramount Exch.,* 262 U. S. 544; *Air-Way Corp.* v. *Day,* 266 U. S. 71; *Hanover Ins. Co.* v. *Harding,* 272 U. S. 494; *Power Co.* v. *Saunders,* 274 U. S. 490; *Louisville Gas Co.* v. *Coleman,* 277 U. S. 32; *Quaker City Cab Co.* v. *Penna.,* 277 U. S. 389; *Cumberland Coal Co.* v. *Board,* 284 U. S. 23; *Liggett Co.* v. *Lee,* 288 U. S. 517; *Concordia Ins. Co.* v. *Illinois,* 292 U. S. 535; *Stewart Dry Goods Co.* v. *Lewis,* 294 U. S. 550; *Mayflower Farms* v. *Ten Eyck,* 297 U. S. 266; *Hartford Co.* v. *Harrison,* 301 U. S. 459.

[4] *In re Ayers,* 123 U. S. 443, overruled in part *Osborn* v. *United States Bank,* 9 Wheat. 738, a decision 63 years old; *Leisy* v. *Hardin,* 135 U. S. 100, overruled *Peirce* v. *New Hampshire,* 5 How. 504, a decision 42 years old. *Erie R. Co.* v. *Tompkins,* 304 U. S. 64, over-